

Track 1 — Chapter Build Pass

MPEP Chapter 600 · Parts, Form, and Content of Application

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: What Actually Has to Be In an Application

Chapter 600 covers the nuts and bolts of what an application must contain to get a filing date, what can be fixed later, and administrative details like entity status and inventorship corrections — heavy on concrete rules and light on judgment calls, which makes it good, reliable-point territory on the exam.

Rule 1: Required Parts of a Utility Application (§601)

PLAIN ENGLISH

A complete utility application generally includes: a specification (with a description, and at least one claim), drawings (when necessary to understand the invention), an oath or declaration by each inventor, and the required fees. Missing parts can be corrected, but the **filing date** is only granted once the minimum requirements (specification, at least one claim in some contexts, and any necessary drawing) are met under the applicable filing-date rules — the oath/declaration and fees can, in many cases, be submitted after filing (with a surcharge) without losing the filing date.

EXAMPLE

An applicant files a specification and drawings but forgets the inventor's declaration. Under current practice, the application can still receive a filing date, with the missing declaration and any associated surcharge submitted afterward.

QUIZ

Which of the following, if initially missing, generally will NOT prevent an application from receiving a filing date (though it must be submitted later, often with a surcharge)?

- (A) The inventor's oath or declaration
- (B) The specification
- (C) Necessary drawings
- (D) At least one claim, in relevant filing contexts

Rule 2: Specification Content & the Claims (§608)

PLAIN ENGLISH

The specification must include a written description of the invention, and end with one or more **claims** particularly pointing out and distinctly claiming the subject matter regarded as the invention (linking to §112(b)). The specification should also describe the best mode known to the inventor at filing, and generally follow a standard arrangement (title, cross-reference to related applications, background, summary, brief description of drawings, detailed description, claims, abstract).

EXAMPLE

An application whose specification jumps straight into technical detail without a background section or organized structure isn't automatically rejected for the disorganization itself, but following the standard MPEP-recommended arrangement helps avoid clarity objections and speeds examination.

QUIZ

Which document component must end with claims particularly pointing out the invention?

- (A) The abstract
- (B) The specification
- (C) The oath/declaration
- (D) The information disclosure statement

Rule 3: Drawings — When Required (§608.02)

PLAIN ENGLISH

Drawings are required when necessary to understand the claimed invention (nearly always true for mechanical/electrical/most utility inventions), but may be omitted for inventions that can't usefully be illustrated (e.g., some chemical compositions or processes with no illustratable steps). Drawings must show every feature specified in the claims and conform to specific formatting standards (views, reference numerals, etc.).

EXAMPLE

A claimed novel mechanical linkage mechanism, described only in text with no drawing, would likely draw an objection requiring drawings, since a mechanical structure like this is normally understood far more clearly with an illustration and is the kind of invention drawings requirements target.

QUIZ

Are drawings always required for a utility patent application?

- (A) Yes, without exception
- (B) No — only when necessary to understand the claimed invention
- (C) Only for design patents
- (D) Only if requested by the examiner

Rule 4: Micro Entity, Small Entity, and Fee Status (§509.02-.04)

PLAIN ENGLISH

The USPTO offers reduced fees for qualifying **small entities** (small businesses, nonprofits, independent inventors meeting size/assignment limits) and further-reduced fees for qualifying **micro entities** (small entities that also meet additional income and prior-application-count limits, or qualify via an institution-of-higher-education-related basis). Claiming an entity status requires an assertion and carries a continuing duty to notify the Office if status changes and no longer qualifies before paying a fee at the reduced rate.

EXAMPLE

An independent inventor who qualifies as a micro entity pays significantly reduced fees throughout prosecution — but if they later license the invention to a large company in a way that disqualifies micro entity status, they must notify the Office and pay any fee thereafter at the correct (higher) rate.

QUIZ

What must a micro entity applicant do if their eligibility status changes and they no longer qualify?

- (A) Nothing, status is locked in permanently once claimed
 - (B) Notify the Office and pay subsequent fees at the correct (non-micro-entity) rate
 - (C) Refile the application entirely
 - (D) Automatically lose the application
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Rule 5: Correcting Inventorship (§602)

PLAIN ENGLISH

If the named inventors turn out to be incorrect (someone was omitted, or improperly included) and this error occurred without deceptive intent, it can generally be corrected by filing the appropriate request/petition and paperwork (statement, and in some cases fee) — inventorship errors made without deceptive intent are not by themselves a fatal, uncorrectable defect.

EXAMPLE

During prosecution, the applicant realizes a colleague who contributed a claimed feature was left off as a named inventor by an honest oversight. This can be corrected by filing the required inventorship correction paperwork, rather than being treated as an unfixable error voiding the application.

QUIZ

An application unintentionally omits a co-inventor. What is generally true about correcting this?

- (A) The application is automatically void
 - (B) It can generally be corrected through the proper petition/paperwork process, since there was no deceptive intent
 - (C) A brand new application must always be filed
 - (D) Only the omitted inventor can request correction
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An application is filed with a complete specification and drawings but no oath/declaration. Under current practice, what generally happens to the filing date?

- (A) No filing date is granted until the declaration is filed
- (B) A filing date can still be granted, with the declaration submittable later (often with a surcharge)
- (C) The application is automatically abandoned
- (D) The filing date is granted only after examination begins

2. A chemical process claim with no meaningfully illustratable steps is filed without drawings. Is this improper?

- (A) Yes, drawings are always mandatory
- (B) Not necessarily — drawings are required only when necessary to understand the invention
- (C) Yes, unless the examiner waives the requirement in writing first
- (D) No, chemical claims never require drawings under any circumstance

3. A qualifying micro entity later loses eligibility mid-prosecution. What must they do before paying the next fee?

- (A) Nothing
- (B) Notify the Office and pay at the correct, non-reduced rate going forward
- (C) Refile as a new application
- (D) Immediately abandon the application

4. Which of these must a specification conclude with?

- (A) An abstract
- (B) One or more claims
- (C) A drawing description only
- (D) A certificate of correction

5. True or False: An inventorship error made without deceptive intent generally voids the application beyond repair.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Filing date requires the core parts (specification, necessary drawings, in relevant cases at least one claim) — **oath/declaration and fees can often follow later** with a surcharge.
- Specification must **end with claims** that comply with §112(b).
- Drawings required only **when necessary to understand** the claimed invention — not an absolute rule.
- **Micro/small entity status** carries a continuing duty to update if eligibility changes.
- Non-deceptive **inventorship errors are correctable** — not automatically fatal.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Required Parts of a Utility Application (§601)

Which of the following, if initially missing, generally will NOT prevent an application from receiving a filing date (though it must be submitted later, often with a surcharge)?

Answer: A

The oath/declaration can typically be filed after the filing date (with a surcharge) without losing that date — unlike the specification, which is a core filing-date requirement.

Rule 2: Specification Content & the Claims (§608)

Which document component must end with claims particularly pointing out the invention?

Answer: B

The specification is the document that must conclude with the claims — the abstract and other components serve different roles and don't themselves contain the claims.

Rule 3: Drawings — When Required (§608.02)

Are drawings always required for a utility patent application?

Answer: B

Drawings are required only when necessary for understanding — some inventions (certain chemical or process claims) may not be usefully illustrated, though most mechanical/electrical inventions will need them.

Rule 4: Micro Entity, Small Entity, and Fee Status (§509.02-.04)

What must a micro entity applicant do if their eligibility status changes and they no longer qualify?

Answer: B

Entity status isn't a one-time election — there's a continuing duty to update it, since paying at an incorrect (too-low) rate after disqualification can create fee-payment problems.

Rule 5: Correcting Inventorship (§602)

An application unintentionally omits a co-inventor. What is generally true about correcting this?

Answer: B

Non-deceptive inventorship errors are correctable — the process exists precisely because honest mistakes in listing inventors are common and shouldn't be fatal to the application.

Chapter Close-Out Quiz

1. (B)

Modern practice allows the filing date to be secured even with a missing oath/declaration, which can be filed later with a surcharge — a key distinction from core filing-date documents like the specification.

2. (B)

The drawings requirement is need-based (necessary to understand the claimed invention), not absolute — some chemical/process claims properly omit drawings.

3. (B)

Entity status carries an ongoing duty to update the Office and pay correctly once disqualified — it isn't locked in indefinitely.

4. (B)

The specification must end with one or more claims — this links directly to the §112(b) definiteness requirement covered in the §112 PDF.

5. (B) False

Non-deceptive inventorship errors are correctable through the proper process — they are a common, fixable issue, not an automatic, fatal defect.